

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #12	CCRB Case #: 201709218	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/30/2017 11:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/28/2019	Precinct: 108		
Date/Time CV Reported Wed, 11/08/2017 10:16 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/08/2017 10:16 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Patrick Castel	09688	960338	108 PCT
2. POF Michele Carrieri	22763	944098	108 PCT
3. Officers			108 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers threatened to arrest § 87(2)(b)	A . Unfounded
B . POM Patrick Castel	Abuse: Police Officer Patrick Castel forcibly removed § 87(2)(b) to the hospital.	B . Exonerated
C . POF Michele Carrieri	Abuse: Police Officer Michele Carrieri forcibly removed § 87(2)(b) to the hospital.	C . Exonerated
D . POM Patrick Castel	Abuse: Police Officer Patrick Castel frisked § 87(2)(b)	D . Exonerated
E . POM Patrick Castel	Abuse: Police Officer Patrick Castel searched § 87(2)(b)	E . Substantiated
F . POM Patrick Castel	Force: Police Officer Patrick Castel used physical force against § 87(2)(b)	F . Exonerated
G . POM Patrick Castel	Discourtesy: Police Officer Patrick Castel spoke discourteously to § 87(2)(b)	G . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On November 8, 2017, § 87(2)(b) filed this complaint with the CCRB over the phone.

At approximately 11:00 p.m. on August 30, 2017, § 87(2)(b) left the § 87(2)(b) in Queens. § 87(2)(b) left the hostel after having a dispute with the business' management, who also called 911. Police officers and FDNY EMTs, including Police Officer Patrick Castel and Police Officer Michele Carrieri of the 108th Precinct and EMT § 87(2)(b) and EMT § 87(2)(b) of FDNY EMS Station 49, responded to the incident address. The officers and EMTs arrived at the incident address at approximately the same time.

The officers and EMTs approached § 87(2)(b) on the sidewalk a few yards away from the hostel entrance. The officers allegedly threatened to arrest § 87(2)(b) for his behavior inside of the hostel if he did not go to the hospital (**Allegation A: Abuse: Threat of Arrest: Unfounded**). The EMTs then attempted to evaluate § 87(2)(b)'s physical and mental condition, but were unable to do so. § 87(2)(b) was then removed to § 87(2)(b) for further evaluation (**Allegation B: Abuse: Forcible Removal to the Hospital: Exonerated, Allegation C: Abuse: Forcible Removal to the Hospital: Exonerated**). § 87(2)(b) was led into the back of an ambulance, where Police Officer Castel frisked him (**Allegation D: Abuse: Frisk: Exonerated**) and searched his bags (**Allegation E: Abuse: Search: Substantiated**).

While en route to § 87(2)(b), § 87(2)(b) got into an argument with EMT § 87(2)(b). Police Officer Castel intervened in this dispute, pushing § 87(2)(b) partially on to a stretcher and handcuffing him (**Allegation F: Force: Physical Force: Exonerated**). As he did so, Police Officer Castel allegedly cursed repeatedly at § 87(2)(b) telling him to "shut the fuck up," calling him a "fucking lowlife scumbag," and using the word "fuck" repeatedly (**Allegation G: Discourtesy: Word: Unsubstantiated**).

§ 87(2)(g), § 87(4-b)

The investigation obtained no video footage of this incident.

Findings and Recommendations

Allegation A: Abuse of Authority: Officers threatened to arrest § 87(2)(b)

§ 87(2)(b) provided a telephone statement on November 30, 2017 (**Board Review 01**), and was interviewed at the CCRB on December 1, 2017 (**Board Review 02**). Police Officer Castel was interviewed on January 30, 2018 (**Board Review 03**). Police Officer Carrieri was interviewed on February 14, 2018 (**Board Review 04**). EMT § 87(2)(b) was interviewed on March 12, 2018 (**Board Review 05**). EMT § 87(2)(b) was interviewed on March 12, 2018 (**Board Review 06**).

The investigation contacted the § 87(2)(b) staff via telephone and email. The hostel manager emailed a statement along with photographs and excerpts of email conversations between staff members regarding this incident. On the night of the incident, § 87(2)(b) allegedly caused damage to hostel and guest property, prompting the staff to move the other room occupants to new rooms and lock § 87(2)(b) out of the room. § 87(2)(b) also allegedly made a wide range of insulting and physically threatening statements to the hostel staff. The staff then called the police (**Board Review 18**).

Police Officer Castel said that he and PO Carrieri spoke to the EMTs about § 87(2)(b). PO Castel said that § 87(2)(b) looked like he should probably go to the hospital, and the EMTs agreed that § 87(2)(b) should go to the hospital to get “checked out.” When asked by the investigation why § 87(2)(b) needed to go to the hospital, PO Castel said that he appeared to be mentally unwell and had possibly been using narcotics. Both PO Castel and EMS workers told § 87(2)(b) that he should go to the hospital. PO Castel could not recall who said it first. When asked who made the decision that § 87(2)(b) should go to the hospital, PO Castel said that it was the EMTs’ decision.

Police Officer Carrieri stated that it was the EMTs’ decision that § 87(2)(b) needed to go to the hospital.

In her sworn statement, EMT § 87(2)(b) stated that she attempted to evaluate § 87(2)(b)’s condition by asking him a series of questions. § 87(2)(b) refused to answer any of these questions, limiting EMT § 87(2)(b)’s ability to assess his health. EMT § 87(2)(b) felt that § 87(2)(b) needed further evaluation, so she asked § 87(2)(b) to get into the ambulance. She did not recall discussing this issue with anyone else before asking. After EMT § 87(2)(b) said that § 87(2)(b) needed to go to the hospital, she asked police officers to escort them. EMT § 87(2)(b) described an FDNY lieutenant also being on scene.

In his sworn statement, EMT § 87(2)(b) stated that EMT § 87(2)(b) spoke to § 87(2)(b) about his medical condition, and he was “adamant” that he would not go to the hospital. However, EMT § 87(2)(b) was eventually able to verbally convince § 87(2)(b) to go to the hospital. None of the officers mentioned the hospital to § 87(2)(b) only EMT § 87(2)(b).

§ 87(2)(a) PHL § 18(6)

Under NYPD Patrol Guide Section 216.01, officers must cooperate with ambulance personnel in every reasonable manner (**Board Review 07**). Under NYPD Patrol Guide Section 221.13, when an emotionally disturbed person (“EDP”) is willing to leave an incident location peacefully, that person is to be transported in an ambulance and may be transported without direction from a supervisor (**Board Review 08**).

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be exonerated.

Allegation D: Abuse of Authority: Police Officer Patrick Castel frisked § 87(2)(b)

In his telephone statement, § 87(2)(b) described Police Officer Castel patting down his upper and lower body without reaching into his pockets while he was standing on the sidewalk outside of the hostel. § 87(2)(b) did not mention any type of frisk in his initial intake call, and did not allege a frisk in his sworn statement.

Police Officer Castel acknowledged that he patted down the exterior of § 87(2)(b)'s body immediately prior to him being placed into the ambulance. This was done as part of a procedure to make sure it was safe for him to be inside the vehicle.

Under NYPD Patrol Guide Section 221.13, when a police officer works with ambulance personnel to transport an EDP, the officer should remove property that is dangerous to life or will aid escape (**Board Review 08**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be exonerated.

Allegation E: Abuse of Authority: Police Officer Patrick Castel searched § 87(2)(b)

It is undisputed that Police Officer Castel escorted § 87(2)(b) into the rear of the ambulance and rode with him to § 87(2)(b).

In both his telephone statement and sworn statement, § 87(2)(b) stated that no officer opened or went into the bag that he was carrying. He did not mention any type of search in his intake call.

PO Castel did not recall whether any emergency worker went into § 87(2)(b)'s bag, but said that he did not do so himself. Once § 87(2)(b) was escorted inside the ambulance, his bag was left in his "reachable area."

Officer Castel and EMT § 87(2)(b) back into his seat and his seatbelt was refastened. No further physical force was used by any individual. No one, including Police Officer Castel, EMT § 87(2)(b) or § 87(2)(b) sustained physical injury during this incident.

In both his telephone statement and his sworn statement, § 87(2)(b) denied unbuckling his seatbelt. He consistently described Police Officer Castel initiating physical contact with him immediately after EMT § 87(2)(b) grabbed his wrist. § 87(2)(b) characterized both EMT § 87(2)(b)'s grabbing of his wrist and Police Officer Castel's subsequent approach, grappling, and handcuffing as being without identifiable justification. In his sworn statement, § 87(2)(b) alleged that Police Officer Castel asked "How do you like that?" as he handcuffed § 87(2)(b).

Police Officer Castel stated that, during the drive to § 87(2)(b), § 87(2)(b) removed his seatbelt. EMT § 87(2)(b) immediately told § 87(2)(b) to put it back on for his safety. § 87(2)(b) did not put his seatbelt back on. Approximately ten seconds passed. PO Castel stood up and used hand motions to indicate that § 87(2)(b) needed to re-fasten his seatbelt. PO Castel had been seated next to § 87(2)(b) but when he stood up, he turned to face § 87(2)(b). Due to the low ceiling of the ambulance, PO Castel had to crouch somewhat while standing. § 87(2)(b) then "smacked" PO Castel's hand away. This did not cause PO Castel pain or injury. PO Castel decided to put handcuffs on § 87(2)(b) to protect himself along with the EMT. § 87(2)(b) did not take any other actions beyond "smacking" PO Castel's hand that led PO Castel to conclude that § 87(2)(b) should be handcuffed.

PO Castel got § 87(2)(b) up into a standing position. He did not have to physically pick § 87(2)(b) up, rather § 87(2)(b) stood up voluntarily, under his own power. PO Castel said, "Sir, I'm going to have to handcuff you now" as § 87(2)(b) was standing up. § 87(2)(b) did not struggle or try to evade PO Castel. PO Castel then placed his hand on § 87(2)(b)'s back and pushed him down, stomach first, on to the stretcher. PO Castel did not need to use substantial effort to push § 87(2)(b) forward, as § 87(2)(b) bent forward willingly. § 87(2)(b) was leaning with his torso on the stretcher so that his back was exposed to PO Castel. § 87(2)(b) did not resist with his arms, and PO Castel was able to get the handcuffs on without incident. § 87(2)(b) did not complain of pain at this point. PO Castel did not require the EMT's assistance during this process. PO Castel guided § 87(2)(b) back into a seated position in his chair and refastened his seatbelt. In total, PO Castel was in physical contact with § 87(2)(b) for approximately ten seconds.

Police Officer Carrieri denied having any knowledge of what happened in the rear of the ambulance while it was traveling from the hostel to the hospital.

In her sworn statement, EMT § 87(2)(b) stated that as EMT § 87(2)(b) drove the ambulance towards § 87(2)(b), she asked § 87(2)(b) a standardized series of questions § 87(2)(b). As EMT § 87(2)(b) asked these questions, § 87(2)(b) became increasingly agitated. He began cursing, telling EMT § 87(2)(b) "go fuck yourself" numerous times. He also said "Fuck you, I'm not talking to you," and told both EMT § 87(2)(b) and Police Officer Castel, "I'm going to kick your asses." Police Officer Castel did not do or say anything in response to these statements.

As the ambulance reached the middle of the 59th Street Bridge, § 87(2)(b) took off his seatbelt, stood up, stepped forward towards EMT § 87(2)(b) and attempted to punch EMT § 87(2)(b) with his closed left fist. Police Officer Castel commanded § 87(2)(b) to calm down and to sit down. As § 87(2)(b) stood up, EMT § 87(2)(b) heard “the commotion” and “slammed” on the brakes. Because of the sudden stop, § 87(2)(b) started to fall face-first towards the ambulance cabinets that made up the wall behind EMT § 87(2)(b). EMT § 87(2)(b) grabbed his forearm to prevent him from striking his face or head on the wall behind her.

EMT § 87(2)(b) stated that Police Officer Castel then stood up and handcuffed § 87(2)(b). § 87(2)(b)'s knees were on the floor and he was bent over on to the stretcher and was “fighting” Police Officer Castel, trying to pull his arms out and swing them. § 87(2)(b) was on his knees solely due to the change in momentum of the vehicle causing him to fall, not due to any use of force by Police Officer Castel. Police Officer Castel was able to simply grab each of § 87(2)(b)'s arms and apply the handcuffs. The struggle lasted approximately one minute. During this time, EMT § 87(2)(b) did not make contact with § 87(2)(b) beyond initially grabbing his forearm. EMT § 87(2)(b) “did not believe” that Police Officer Castel put his knee in § 87(2)(b)'s back to restrain him, or use any other part of his body to pin § 87(2)(b) down on to the stretcher.

In his sworn statement, EMT § 87(2)(b) stated that he heard a “commotion” coming from the rear area of the ambulance. He stopped the ambulance, got out, walked around to the rear of the vehicle, and opened the rear doors. Police Officer Castel was standing up, hunched over due to his height and the low ceiling, on the right side of the ambulance. § 87(2)(b) had his seatbelt was off and was standing up in the middle of the ambulance between Police Officer Castel and the stretcher. § 87(2)(b) was facing towards Police Officer Castel. EMT § 87(2)(b) was leaning forward in “the captain’s seat” with her back to the driver’s area, facing towards the rear of the vehicle. She was not fully seated at this point, but not standing up. EMT § 87(2)(b)'s facial expression indicated that she was scared. EMT § 87(2)(b) was not making contact with § 87(2)(b) at this point. Police Officer Castel was trying to restrain § 87(2)(b) by grabbing his arms and shoulders. § 87(2)(b) was “aggressively” moving his body to free himself from Police Officer Castel’s grip. No one was striking one another. EMT § 87(2)(b) did not recall whether § 87(2)(b) made any statements at this point.

§ 87(2)(b) “started towards” EMT § 87(2)(b). Police Officer Castel grabbed § 87(2)(b) and handcuffed him. Police Officer Castel was able to put § 87(2)(b)'s arms behind his back quickly and without apparent difficulty. No one needed to be treated for injuries after the incident. EMT § 87(2)(b) never entered the rear area of the ambulance.

§ 87(2)(a) PHL § 18(6)

Under NYPD Patrol Guide Section 216.01, officers must cooperate with ambulance personnel in every reasonable manner (**Board Review 07**). Under NYPD Patrol Guide Section 221.01, any

application of force by an officer must be reasonable under the circumstances (**Board Review 10**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation F be exonerated.**

Allegation G: Discourtesy: Police Officer Patrick Castel spoke discourteously to § 87(2)(b)

In both his telephone statement and sworn statement, § 87(2)(b) alleged that Police Officer Castel cursed at him repeatedly during the handcuffing process. § 87(2)(b) could not recall the exact phrases that Police Officer Castel allegedly used, but described the officer using the word “fuck” in a variety contexts, including “shut the fuck up,” “shut your fucking mouth,” and “who the fuck do you think you are.”

When asked by the investigation whether he used the aforementioned language towards § 87(2)(b) Police Officer Castel said that he did not recall doing so.

In their sworn statements, both EMT § 87(2)(b) and EMT § 87(2)(b) said that Police Officer Castel did not use any profanity towards § 87(2)(b) either as part of a direct command or in any other context. § 87(2)(b)

Under NYPD Patrol Guide Section 203.09, officers must be courteous in their interactions with civilians (**Board Review 11**).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation G be unsubstantiated.**

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 16**).
- Police Officer Castel has been a member of service for two years and this is the first CCRB complaint in which he has been a subject.
- Police Officer Carrieri has been a member of service for 11 years and has been a subject in two previous CCRB complaints and two allegations, of which one was substantiated.
 - CCRB case number 201310161 involved a substantiated allegation of retaliatory summons against Police Officer Carrieri. The Board recommended charges, and the NYPD imposed no discipline.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of April 23, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (**Board Review 20**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 12

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date